

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Temporary Judge Catherine Evans

Date: 07/08/2026

Court Room Rules and Notices

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#	Case Name	Tentative
1	Yale – Trust; 30-2023-01359872	Motion to Compel
2	Shaw – Trust; 30-2024-01390550	Demurrer Amber Cherie Shaw and Cynthia Tracy Shaw (Respondents) demur to the Verified Amend Cross Petition (Petition) filed on 2/26/26 (ROA 479) by Petitioners Maureen Mary Shaw, Angela Shaw, Eastkings LLC, Eastsilvers LLC, Riverton Kiwi LLC, and Scarba Kiwi LLC (Petitioners). A demurrer can be used only to challenge defects that appear within the "four corners" of the pleading, which includes the pleading, any exhibits attached, and matters of which the court is permitted to take judicial notice. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) Courts "'treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. [Citation.] We also consider matters which may be judicially noticed." (<i>Id.</i>) On demurrer, a complaint must be liberally construed. (Code Civ. Proc., § 452; <i>Stevens v. Superior Court</i> (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (<i>Aubry v. Tri-City Hospital Dist.</i> (1992) 2 Cal.4th 962, 966-967.) On demurrer, a complaint must be liberally construed. (Code Civ. Proc. § 452; <i>Stevens v. Superior Court</i> (1999)